

24VECV04354 24VECV04354

County: los-angeles

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Case Number: 24VECV04354 Hearing Date: July 31, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

Nikita Shishkin, a minor, by and
through his

Guardian Ad Litem, Michelle
Shishkin,

Plaintiffs,

v.

City of Los Angeles

Defendant.

Case Number Department

24VECV04354 107

COURT'S [TENTATIVE] ORDER RE:

Petition to Confirm Minor's Compromise

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Grant

I.

BACKGROUND

In or around July 23, 2023, Plaintiff Nikita Shishkin ("Plaintiff") was at Van Nuys Sherman Oaks Recreation Center, located at 14201 Huston Street, Van Nuys, California 91423 (the "Subject Property"). (Complaint ¶¶ 8-9.) Plaintiff was working on his diving skills. (Complaint ¶ 9.) Plaintiff slipped and fell on the diving board. (Complaint ¶¶ 9-10.) Plaintiff sustained injuries. (Complaint ¶ 10.)

On September 9, 2024, Plaintiff, a minor, by and through his Guardian Ad Litem, Michelle Shishkin, filed a complaint against Defendants City of Los Angeles, Monique Schwaneman, and Does 1 through 50, alleging causes of action for: (1) liability for dangerous condition of public property; and (2) negligence – general.

On November 4, 2024, Cross-Complainant City of Los Angeles filed a cross-complaint against Cross-Defendants Roes 1 to 10, alleging causes of action for: (1) indemnification; (2) apportionment of fault; and (3) declaratory relief.

On February 17, 2026, Plaintiff filed a notice of settlement of entire case.

On April 7, 2026, Petitioner Michelle Shishkin ("Petitioner") a petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "First Petition"). On April 29, 2026, the court denied the First Petition. (04/29/26 Minute Order p. 5.)

On April 28, 2026, Petitioner filed a second petition for approval of compromise of claim or action or disposition of proceeds of

judgment for minor or person with a disability (the "Second Petition"). On June 11, 2026, the court denied the Second Petition. (06/11/26 Minute Order p. 6.)

On June 26, 2026, Petitioner filed a third petition for approval of compromise of claim or action or disposition of proceeds of judgment for minor or person with a disability (the "Petition"). As of July 27, 2026, no opposition has been filed.

II.

LEGAL

STANDARD

"An agreement to settle or compromise a claim made by a minor 'is valid only after it has been approved, upon the filing of a petition, by the superior court . . . ' in the county where the minor resides or the action could have been brought." (Pearson v. Superior Court (2012) 202 Cal.App.4th 1333, 1337.)

"[T]he protective role the court generally assumes in cases involving minors, [is] a role to assure that whatever is done is in the minor's best interests. . . . [I]ts primary concern is whether the compromise is sufficient to provide for the minor's injuries, care and treatment." (Goldberg v. Superior Court (1994) 23 Cal.App.4th 1378, 1382.)

"A petition for court approval of a compromise or covenant not to sue under Code of Civil Procedure section 372 must comply with rules 7.950 or 7.950.5, 7.951, and 7.952." (Cal. Rules of Court 3.1384(a).) The petition "must be verified by the petitioner and must contain a full disclosure of all information that has any bearing on the reasonableness of the compromise, covenant, settlement, or disposition." (Cal. Rules of Court, rule 7.950.) "The person petitioning for approval of the compromise of the claim on behalf of the minor or person with a disability and the minor or person with a disability must attend the hearing on the petition unless the court for good cause dispenses with their personal appearance." (Cal. Rules of Court, rule 7.952(a).)

"An order for the deposit of funds of a minor or a person with a disability, and a petition for the withdrawal of such funds, must comply with rules 7.953 and 7.954." (Cal. Rules of Court, rule 3.1384(b).)

California Rules of Court, rule

7.955(a) requires the court to use “a reasonable fee standard when approving and allowing the amount of attorney's fees payable from money or property paid or to be paid for the benefit of a minor or a person with a disability” and requires that the court “give consideration to the terms of any representation agreement made between the attorney and the representative of the minor . . . and must evaluate the agreement based on the facts and circumstances existing at the time the agreement was made, except where the attorney and the representative of the minor or person with a disability contemplated that the attorney's fee would be affected by later events.”

California Rules of Court, rule 7.955(b) sets forth fourteen nonexclusive factors the court may consider in determining a reasonable attorney's fee. Rule 7.955(b)'s factors include,

(1) The fact that a minor or person with a disability is involved and the circumstances of that minor or person with a disability.

(2) The amount of the fee in proportion to the value of the services performed.

(3) The novelty and difficulty of the questions involved and the skill required to perform the legal services properly.

(4) The amount involved and the results obtained.

(5) The time limitations or constraints imposed by the representative of the minor or person with a disability or by the circumstances.

(6) The nature and length of the professional relationship between the attorney and the representative of the minor or person with a disability.

(7) The

experience, reputation, and ability of the attorney or attorneys performing the legal services.

(8) The time
and labor required.

(9) The
informed consent of the representative of the minor or person with a disability to the fee.

(10) The
relative sophistication of the attorney and the representative of the minor or person with a disability.

(11) The
likelihood, if apparent to the representative of the minor or person with a disability when the representation agreement was made, that the attorney's acceptance of the particular employment would preclude other employment.

(12) Whether
the fee is fixed, hourly, or contingent.

(13) If the fee
is contingent:

(A) The risk of
loss borne by the attorney;

(B) The amount
of costs advanced by the attorney; and

(C) The delay
in payment of fees and reimbursement of costs paid by the attorney.

(14) Statutory
requirements for representation agreements applicable to particular cases or claims.

(Cal. Rules of Court, rule
7.955(b).)

“A petition requesting court approval and allowance of an attorney's fee under (a) must include a declaration from the attorney that addresses the factors listed in (b) that are applicable to the matter before the court.” (Cal. Rules of Court, rule 7.955(c).)

III.

DISCUSSION

The Petition is properly filed on Form MC-350 and is verified by Petitioner. (Petition p. 10.) Nikita Shishkin (“Minor Claimant”) settled with Defendant City of Los Angeles for \$50,000.00 and with Amateur Athletic Union of the United States, Inc., Valley Dive, and Tom Davidson for \$25,000.00. (Petition ¶ 10b pdf p. 3.) On July 23, 2023, Minor Claimant was working on his diving skills at a pool located in Van Nuys Sherman Oaks Recreation Center. (Petition ¶¶ 4-5 pdf p. 2) Minor Claimant slipped and fell. (Petition ¶ 5 pdf p. 2.) Minor Claimant sustained injuries, including a cut, abrasions, and scarring to his right arm, left elbow, and back, and soft tissue injuries to his neck and back. (Petition ¶¶ 5-6 pdf p. 2.) Minor Claimant received treatment for his injuries. (Petition ¶ 7 pdf p. 2.) Minor Claimant has not recovered completely from his injuries and still experiences mild lower back pain. (Petition ¶ 8b.) Petitioner submits Minor Claimant's medical records as Attachment 8. (Petition ¶ 8, Attachment 8 pdf pp. 11-104.)

Minor Claimant's medical expenses, before reductions, total \$48,596.50. (Petition ¶ 12a pdf p. 4.) After reductions, the total expenses to be paid or reimbursed from the proceeds totals \$19,771.69. (Petition ¶ 12a pdf p. 4.)

Minor Claimant's counsel seeks \$18,750.00 in attorneys' fees and \$6,168.44 in costs. (Petition ¶ 13 pdf p. 5.) The Retainer Agreement is attached as Attachment 17a. (Petition ¶ 13a pdf p. 5; Attachment 17a pdf pp. 111-116.) The Retainer Agreement provided for 33.33% of amounts received before filing of a lawsuit or 40% of amounts received after special investigative unit, examinations under oath, the filing of a lawsuit, arbitration hearing, settlement conference, or trial. (Attachment 17a pdf p. 113.) Minor Claimant's counsel submits a declaration stating they reduced their fee to 25%. (Attachment 13(a), Hamassian Declaration ¶ 4 pdf p. 107.)

The net balance of proceeds remaining for Minor Claimant is \$30,309.87. (Petition ¶ 15 pdf p. 6.)

Petitioner requests the funds be deposited in insured accounts in one or more financial institutions in this state, subject to withdrawal only on authorization of the court. (Petition ¶ 18b(2) pdf p. 8.) Attachment 18b(2) specifies the name, branch, and address of the depository. (Attachment 18b(2) pdf p. 117.)

The Petition cures the following deficiencies present in the First Petition.

The Petition states Defendant Monique Schwaneman settled this matter for \$0.00. (Petition ¶ 10 pdf p. 3.)

Petitioner is identified as Minor Claimant's parent and Guardian Ad Litem. (Petition ¶ 1 pdf p. 1.)

Petitioner filed proposed orders relating to the Petition and funds.

The Petition also cures the following deficiency present in the Second Petition.

Minor Claimant's counsel's declaration sufficiently discusses the factors set forth in California Rules of Court, rule 7.955(b). (Petition Attachment 13a, Hamassian Declaration pdf pp. 107-110, ¶¶ 4-15.)

IV.

CONCLUSION

For the foregoing reasons,
the Petition is granted.

Date: July 31, 2026

Judge Eric Harmon, Department 107,

Van Nuys

Los Angeles County Superior Court